

Court No. - 39

Case :- WRIT - C No. - 20718 of 2016

Petitioner :- Deep Mohan Agarwal

Respondent :- District Magistrate G.B. Nagar And 3 Others

Counsel for Petitioner :- Manish Goyal, Pooja Agarwal

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Dilip Gupta, J.

Hon'ble Ravindra Nath Kakkar, J.

Both the petitioner and respondent No. 4 are sons of Late Sheetal Prasad. Petitioner No.1 claims to be residing on the first floor of the house in Sector 56, NOIDA whereas respondent No.4, it is stated, resides on the ground floor of the said house. There is a dispute between two brothers over the properties inherited after the death of their father on 24 September 2002. According to the petitioner, the electricity supply to the house of the petitioner has been disconnected by the Power Corporation at the instance of his brother, while according to the Corporation it is the brother who has disconnected the electricity supply of the petitioner.

We are presently not concerned with this dispute as what is submitted by the learned counsel for the petitioner during the course of hearing of the writ petition is that in that event a fresh power connection can be given to the petitioner in accordance with the provisions of the Uttar Pradesh Electricity Supply Code 2005, particularly clause 4.4 which deals with indemnity bond to be submitted by an intending consumer who is not the owner of the premises.

It is for the petitioner, in such circumstance, to move an appropriate application before the concerned Officer of the Paschimanchal Vidyut Vitaran Nigam Limited, Gautam Budh Nagar.

Sri Chandan Agarwal, learned counsel appearing for the Power Corporation states that in case such an application is filed, a decision shall be taken expeditiously.

This petition is, accordingly, disposed of with a direction that in the event an application is filed by the petitioner in the prescribed form for providing an independent power connection, it shall be examined in accordance with law and a decision shall be taken expeditiously and preferably within a period of 15 days after hearing the parties including respondent No.4-Shiv Kumar Agarwal. The order impugned shall abide by

the order to be passed. It is made clear that in case, it is found that the petitioner is entitled to an independent power connection, the same shall be provided expeditiously.

Order Date :- 9.5.2016

Akram

(Dilip Gupta,J.)

(Ravindra Nath Kakkar,J.)